

JACKSON, J., dissenting

in the realm of criminal law—what I would call an individual accountability model.

The basic contours of that model are familiar, because they manifest in every criminal case. Criminal law starts with an act of the legislature, which holds the power “to define a crime, and ordain its punishment.” *United States v. Wiltberger*, 5 Wheat. 76, 95 (1820); accord, *Ohio v. Johnson*, 467 U.S. 493, 499 (1984). Criminal statutes are laws of general applicability that express “the assent of the people’s representatives” that certain conduct is off limits in our society. *Wooden v. United States*, 595 U.S. 360, 391 (2022) (GORSUCH, J., concurring in judgment).

When the Federal Government believes that someone has run afoul of a criminal statute and decides to exercise its prosecutorial discretion to pursue punishment for that violation, it persuades a grand jury that there is probable cause to indict. U.S. Const., Amdt. 5. Then, the Government marshals evidence to prove beyond a reasonable doubt that the defendant engaged in the prohibited conduct and possessed the requisite state of mind. See *United States v. Bailey*, 444 U.S. 394, 402 (1980) (observing that, to hold a person criminally liable, “the concurrence of . . . ‘an evil-meaning mind [and] an evil-doing hand’” must be proved (quoting *Morissette v. United States*, 342 U.S. 246, 251 (1952))).

For his part, the defendant “stands accused but is presumed innocent until conviction upon trial or guilty plea.” *Betterman v. Montana*, 578 U.S. 437, 441 (2016). Notably, criminal defendants have various constitutionally protected rights during the criminal-liability process, including the rights to a speedy and public trial, the right to have a jury decide guilt or innocence, the right to the assistance of counsel, and the right to confront the witnesses against him. Amdt. 6. The defendant also has at his disposal many means to defend himself against the criminal charge. He can, of course, seek to hold the Government to its burden of